New York City Rent Guidelines Board
1 Centre Street, Suite 2210 • New York, NY 10007
email: ask@rgb.nyc.gov • nyc.gov/rgb

Chair: Chantella Mitchell
Executive Director: Andrew McLaughlin

Rent Guidelines Board Apartment Orders #1 through #58*

Order Number	Rent Stabilized Leases Starting Between	One-Year Renewal Lease	Two-Year Renewal Lease	Three-Year Renewal Lease	Vacancy Lease	Electrical Inclusion	Fair Market Rent Guidelines for Previously Controlled Units
58	10/1/26 to 9/30/27	0.0%	0.0%	--	See Renewal Lease Guidelines [1, 2]	None	MBR + 49%
57	10/1/25 to 9/30/26	3.0%	4.5%	--	See Renewal Lease Guidelines [1, 2]	None	MBR + 49%
56	10/1/24 to 9/30/25	2.75%	5.25%	--	See Renewal Lease Guidelines [1, 2]	None	MBR + 49%
55	10/1/23 to 9/30/24	3.0%	2.75% (1st yr) 3.2% (2nd yr) [3]	--	See Renewal Lease Guidelines [1, 2]	None	MBR + 27%
54	10/1/22 to 9/30/23	3.25%	5.0%	--	See Renewal Lease Guidelines [1, 2]	None	MBR + 27%
53	10/1/21 to 9/30/22	0.0% (1st 6 mos) 1.5% (last 6 mos)	2.5%	--	See Renewal Lease Guidelines [1, 2]	None	MBR + 39%
52	10/1/20 to 9/30/21	0.0%	0.0% (1st yr) 1.0% (2nd yr)	--	See Renewal Lease Guidelines [1, 2]	None	MBR + 39%
51	10/1/19 to 9/30/20	1.5%	2.5%	--	--[1]	None	MBR + 39%
50	10/1/18 to 9/30/19	1.5%	2.5%	--	--[4, 5]	None	MBR + 39%
49	10/1/17 to 9/30/18	1.25%	2.0%	--	--[4, 5]	None	MBR + 33%
48	10/1/16 to 9/30/17	0.0%	2.0%	--	--[4, 5]	None	MBR + 33%
47	10/1/15 to 9/30/16	0.0%	2.0%	--	--[4, 5]	None	Greater of MBR + 33% or H.U.D.'s Fair Market Rent [6]
46	10/1/14 to 9/30/15	1.0%	2.75%	--	--[4, 5]	None	Greater of MBR + 30% or H.U.D.'s Fair Market Rent [6]

[1] A separate vacancy allowance is not permitted under the Housing Stability and Tenant Protection Act of 2019.

[2] Consistent with guidance from New York State Homes and Community Renewal (HCR), lease adjustments for one- and two-year renewal leases also apply to vacant apartments that become occupied during the term of the Order. No more than one guideline adjustment may be added during the guideline year governed by this order.

[3] For the second year of the lease, adjustement above the amount lawfully charged in the first year, excluding any increases other than the first-year guideline increase.

[4] No vacancy allowance is permitted except as provided by the Rent Regulation Reform Act of 1997 (and the Rent Act of 2015 for Orders 47-50 only).

[5] In the event of a sublease, governed by subdivision (e) of Section 2525.6 of the Rent Stabilization Code, there is a 10% allowable increase.

[6] The fair market rent for existing housing as established by the U.S. Dept. of Housing and Urban Development (HUD) for the NY Primary Metropolitan Statistical Area pursuant to Section 8c (1) of the U.S. Housing Act of 1937, as found at 42 U.S. Code Section 1437f and 24 C.F.R. Part 888, with such Fair Market Rents to be adjusted accordingly whether the tenant pays his own gas and/or electric charges as part of his rent as such gas and/or electric charges are determined by the NYC Housing Authority.

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45	10/1/13 to 9/30/14	4.0%	7.75%	--	--[4, 5]	None	Greater of MBR + 30% or H.U.D.'s Fair Market Rent[6]
44	10/1/12 to 9/30/13	2% or $20, whichever is greater	4% or $40, whichever is greater	--	--[4, 5]	None	Greater of MBR + 30% or H.U.D.'s Fair Market Rent[6]
43	10/1/11 to 9/30/12	3.75%	7.25%	--	--[4, 5]	None	Greater of MBR + 30% or H.U.D.'s Fair Market Rent[6]
42	10/1/10 to 9/30/11	2.25%	4.5%	--	--[4, 5]	None	Greater of MBR + 50% or H.U.D.'s Fair Market Rent[6]
41	10/1/09 to 9/30/10	3.0%[7] 2.5%[8]	6.0%[7] 5.0%[8]	--	--[4, 5]	None	Greater of MBR + 50% or H.U.D.'s Fair Market Rent[6]
	Where the most recent vacancy lease was executed six years or more prior to the date of the renewal lease under this Order, a minimum of 3.0% or $30, whichever is greater, for a one year lease (2.5% or $25, whichever is greater, where the tenant pays for heat) or 6.0% or $60, whichever is greater, for a two-year lease (5% or $50, whichever is greater, where the tenant pays for heat) shall apply.						
	[7] If the owner provides heat at no charge to tenant. [8] If the tenant pays own heat.						
40	10/1/08 to 9/30/09	4.5%[7] 4.0%[8]	8.5%[7] 8.0%[8]	--	--[4, 5]	None	Greater of MBR + 50% or H.U.D.'s Fair Market Rent[6]
	Where the most recent vacancy lease was executed six years or more prior to the date of the renewal lease under this Order, a minimum of 4.5% or $45, whichever is greater, for a one year lease (4% or $40, whichever is greater, where the tenant pays for heat) or 8.5% or $85, whichever is greater, for a two-year lease (8% or $80, whichever is greater, where the tenant pays for heat) shall apply.						
39	10/1/07 to 9/30/08	3%	5.75%	--	--[4, 5]	None	Greater of MBR + 50% or H.U.D.'s Fair Market Rent[6]
38	10/1/06 to 9/30/07	4.25%[7] 3.75%[8]	7.25%[7] 6.75%[8]	--	--[4, 5]	None	Greater of MBR + 50% or H.U.D.'s Fair Market Rent[6]
37	10/1/05 to 9/30/06	2.75%[7] 2.25%[8]	5.5%[7] 4.5%[8]	--	--[4, 5]	None	Greater of MBR + 50% or H.U.D.'s Fair Market Rent[6]
36	10/1/04 to 9/30/05	3.5%[7] 3%[8]	6.5%[7] 6%[8]	--	--[4, 5]	None	Greater of MBR + 50% or H.U.D.'s Fair Market Rent[6]
35	10/1/03 to 9/30/04	4.5%	7.5%	--	--[4, 5]	None	Greater of MBR + 50% or H.U.D.'s Fair Market Rent[6]

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34	10/1/02 to 9/30/03	2%	4%	--	--[4, 5]	None	Greater of MBR + 50% or H.U.D.'s Fair Market Rent [6]
33	10/1/01 to 9/30/02	4%	6%	--	--[4, 5]	None	Greater of MBR + 150% + Fuel Adjustments or H.U.D's Fair Market Rent [6]
32	10/1/00 to 9/30/01 (Rent ≤$500, add $15)	4% (Rent <$215 after appropriate increases in this order have been applied, will be $215)	6%	--	--[4, 5]	None	Greater of MBR + 150% + Fuel Adjustments or H.U.D.'s Fair Market Rent [6]
31	10/1/99 to 9/30/00 (Rent ≤$500, add $15)	2% (Rent <$215 after appropriate increases in this order have been applied, will be $215)	4%	--	--[4, 9]	None	Greater of MBR + 150%+ Fuel Adjustments or H.U.D.'s Fair Market Rent [6]
30	10/1/98 to 9/30/99	2% (Rent <$450, add $15)[11]	4%	--	--[4, 10]	None	Greater of MBR + 80% + Fuel Adjustments or $650
29	10/1/97 to 9/30/98	2% (Rent ≤$400, add $15) [12]	4%	--	--[4, 10]	None	Greater of MBR + 40% + Fuel adjustment or MCR + 50% + Fuel Adjustment
28	10/1/96 to 9/30/97 (Rent ≤$400, add $20)	5%	7%	--	9% [13]	None	Greater of MBR + 40% + Fuel adjustment or MCR + 50% + Fuel Adjustment
27	10/1/95 to 9/30/96	2% (Rent ≤$400, add $20)	4%	--	8.5% [13]	None	Greater of 35% above MBR or 45% above the MCR
26	10/1/94 to 9/30/95	2% (Rent<$400, add $15) [15]	4%	--	10% or 5% [13, 14]	None	Greater of 35% above MBR or 40% above the MCR
25	10/1/93 to 9/30/94	3%	5%	--	5, 3, or 0% [13, 16]	None	MCR + 40%
24	10/1/92 to 9/30/93	3%	5%	--	5% [13]	None	MBR +15% + Fuel Adjustment

[9] In the event of a sublease, governed by subdivision (e) of Section 2525.6 of the Rent Stabilization Code, there is a 0% allowable increase.

[10] In the event of a sublease, governed by subdivision (e) of Section 2525.6 of the Rent Stabilization Code, there is a 5% allowable increase.

[11] Provided the monthly rent resulting from application of this level of increase or any portion thereof does not exceed $465.

[12] Provided the monthly rent resulting from application of this level of increase or any portion thereof does not exceed $415.

[13] If no other Vacancy Allowance was taken within the same guideline year.

[14] 10% for rents < $400 in buildings with 30 or fewer units, 5% for all other buildings with rents <$1000

[15] Applicable for apartments located in buildings with thirty or fewer dwelling units.

[16] 5% for rents < $500, 3% for rents ≥ $500 <$1000, 0% for rents ≥ $1000.

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23	10/1/91 to 9/30/92	4%	6.5%	--	5%[13]	None	MBR + 15% + Fuel Adjustment
22	10/1/90 to 9/30/91	4.5%	7%	--	5%[13]	None	MCR + 35% + Fuel Adjustment
21	10/1/89 to 9/30/90	5.5% (Rent < $325, add $5)[17]	9%	--	12%[13]	None	Greater of 25% above MBR or 45% above MCR + Fuel Adjustment
	[17] Caps: Renewal Lease - $342.88 one year, $354.25 two years; Vacancy Lease - $381.88 one year, $393.25 two years.						
20	10/1/88 to 9/30/89	6% (Rent < $325, add $5)[18]	9%	--	12%[13]	None	Greater of 25% above MBR or 45% above MCR + Fuel Adjustment
	[18] Caps: Renewal Lease - $344.50 one year, $354.25 two years; Vacancy Lease - $383.50 one year, $393.25 two years.						
19	10/1/87 to 9/30/88	3% (Rent < $325, add $10)[20]	6.5%	--	10%[19]	None	1986 MBR + Fuel Adjustment + 35%
	[20] Caps: Renewal Lease - $334.75 for one year lease, $346.13 for two year lease; Vacancy Lease - $367.25 for one year lease, $378.63 for two year lease.				[19] If no vacancy allowance was taken under the previou		
18	10/1/86 to 9/30/87	6% (Rent < $350, add $15)[21]	9%	--	7.5%[19]	None	1986 MBR + Fuel Adjustment + 20%
	[21] Caps: Renewal Lease - $371.00 for one year lease, $381.50 for two year lease; Vacancy Lease - $397.25 for one year lease, $407.75 for two year lease.						
17	10/1/85 to 9/30/86	4% (Rent < $300, add $15)[22]	6.5%	--	7.5%[19]	None	1984 MBR + Fuel Adjustment + 20%
	[22] Caps: Renewal Lease - $312 for one year lease, $319.50 for two year lease; Vacancy Lease - $334.50 for one year lease, $342.00 for two year lease.						
16	10/1/84 to 9/30/85	6% (Rent < $250, add $10)[24]	9%	--[23]	7.5%[19]	None	1984 MBR + Fuel Adjustment + 15%
	[23] Owners no longer required to offer a three year lease effective 10/1/83.				[24] Caps: Renewal Lease - $265 for one year lease, $272.50 for two year lease; Vacancy Lease - $283.75 for one year lease, $291.25 for two year lease.		
15	10/1/83 to 9/30/84	4% (Rent < $200, add $10)[26]	7%	10%	0, 5, 10, or 15%[25]	Minus 1%	1982 MBR+Fuel Adj.+20%
	[25] 0% if 15% or more vacancy allowance has been charged since 7/1/79. 5% if less than 15% but more than 0% vacancy allowance has been charged since 6/1/79. 10% if the last vacancy allowance was charged between 7/1/75 and 6/30/79. 15% if no vacancy allowance has been charged in any guidelines period since 7/1/75. If rent is < $200, see box with Vacancy Allowance Caps.				[26] Caps: Renewal Lease without electric - $208 one year; $214 two years, $220 three years. Renewal Lease with electric - $206 one year, $212 two years, $218 three years.		
14	10/1/82 to 9/30/83	4%	7%	10%	None	Minus 1%	1982 MBR + Fuel Adj + 15%

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13	10/1/81 to 9/30/82 [27]	10% [7] 6.5% [8]	13% [7] 9.5% [8]	16% [7] 12.5% [8]	15%	4%	20% above 1980 MBR
	[27] Starting with Order #13, rent increases are based on the legal rent in effect on September 30 prior to the guideline period.						
12, 12a	7/1/80 to 6/30/81 [28]	11% [7] 5% [8]	14% [7] 7% [8]	17% [7] 9% [8]	5% [29], 10% [30] 15% [31]	1.5%	15% above 1980 MBR
	[28] This guideline period is for fifteen months. [30] If there has been no change in tenancy since 7/1/75.						
	[29] If there has been a change in tenancy since 7/1/75. [31] Vacancy increase over 6/30/81 rent for new leases starting on or after 7/1/81 and on or before 9/30/81.						
11, 11a, 11b [32]	7/1/79 to 6/30/80	8.5%	12%	15%	5% [33] or 15% [34]	None	20% above 1978 MBR
	[32] A fuel surcharge of $8 per month is in effect one year from the starting day of any leases commencing between 7/1/79 and 6/30/80.			[33] For leases beginning between 7/1/79 and 1/31/80.		[34] For leases beginning between 2/1/80 and 6/30/80.	
10b,c,d,e	7/1/78 to 6/30/79	2.5% [35]	2% [35]	0.5% [35]	10% [36, 48]	--	
	[35] In addition to the base adjustment permitted under order #10a, these fuel adjustments for one, two and three year leases could be charged effective 3/1/79. Additional fuel adjustments were set down by Orders #10c,d and e as follows: 1) as of 1/1/80 in addition to the above, $12.00 per month per unit could be charged through 6/30/80; 2) starting 7/1/80, an $8.00 per month per unit fuel adjustment could be charged effective through the end of the lease. In all cases, these adjustments apply only where the landlord provides heat at no additional charge to the tenant. Also, none of these adjustments become part of the base rent and cannot be included in subsequent calculations of rent increases.					[36] For leases where apartment was vacated between 2/1/80 and 6/30/80.	
10,10a	7/1/78 to 6/30/79	4.5%	6.5%	8.5%	5% [48]	0.5%	15% above 1978 MBR
9	7/1/77 to 6/30/78	6.5%	8.5%	11.5%	5% [48]	4% [37]	20% above 1976 MBR
				[37] Only if no electrical inclusion was previously taken.			
8 [38]	7/1/76 to 6/30/77	6.5%	8%	11.0%	5% [48]	3.5% [37]	15% above 1976 MBR
	[38] Special adjustments apply for the first renewal lease of any apartment decontrolled under the Vacancy Decontrol Law. See Supplemental Order #6a for specifics.						
7 [38]	7/1/75 to 6/30/76	7.5%	9.5%	12.5%	5% [48]	3.5%	22.5% above 1974 MBR
6,6a,6b,6c [38]	7/1/74 to 6/30/75	8.5%	10.5%	12%	None [48]	2.5% [39]	15% above 1974 MBR
					[39] Applies only to leases starting on or after 9/1/74.		
5 [40]	7/1/73 to 6/30/74	6.5%	8.5%	10.5%	5% [41, 48]	None	
	[40] Vacancy Decontrol was in effect from 7/1/71 to 6/30/74.				[41] Effective only for apartments vacated before 6/30/71 and not subject to the Vacancy Decontrol Law.		
4 [40]	7/1/72 to 6/30/73 [42]	6%	8%	10%	5% [41, 48]	None	
	[42] The renewal lease guidelines also include a separate "stabilizer" of 0.5%.						
3	7/1/71 to 6/30/72 [43]	7%	9%	12%	10% [41, 48]	None	
	[43] The renewal lease guidelines also include a separate "stabilizer" of 1.0%.						

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2	7/1/70 to 6/30/71 [44]	6%	8%	11%	7.5% [48]	None	
1	7/1/68 to 6/30/70	10% [45]	10%	15%	5% [46, 48] or 10% [47, 48]	None	

[44] The renewal lease guidelines also include a separate "stabilizer" of 1.0%.

[45] A one-year lease extension at the same rental could be requested by the tenant.

[46] For two year leases.

[47] For three year leases.

[48] The vacancy lease guidelines can be taken in conjunction with renewal lease guidelines.

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